

VOLUME IV, No. 3.

MARCH, 1914

THE DELINQUENT

(FORMERLY THE REVIEW)

VOLUME IV, No. 3.

MARCH, 1914

THE DELINQUENT

(FORMERLY THE REVIEW)

The Project Gutenberg eBook of The Delinquent (Vol. IV, No. 3, March 1914)

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Delinquent (Vol. IV, No. 3, March 1914)

Author: Various

Publisher: National Prisoners' Aid Association

Release date: April 3, 2018 [eBook #56905]

Language: English

Other information and formats: www.gutenberg.org/ebooks/56905

Credits: Produced by Larry B. Harrison, Wayne Hammond and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This book was produced from images made available by the HathiTrust Digital Library.)

*** START OF THE PROJECT GUTENBERG EBOOK THE
DELINQUENT (VOL. IV, NO. 3, MARCH 1914) ***

Table of Contents

	Page
<u>THE “DOPE HABIT”</u>	1
<u>A COURSE FOR PRUSSIAN PRISON OFFICIALS AND OTHERS</u>	6
<u>IMPORTANCE OF AN UP-TO-DATE MEDICAL DEPARTMENT IN A PENAL INSTITUTION.</u>	7
<u>A SCENE FROM “THE MAN INSIDE.”</u>	10
<u>Act II, Scene 16.</u>	10
<u>EVENTS IN BRIEF.</u>	14
<u>Legislation in Maryland.</u>	14
<u>The Lash in Delaware.</u>	14
<u>Why Prisoners’ Families Aren’t Supported by Prisoners’ Earnings.</u>	14
<u>Parole In Kentucky.</u>	15
<u>The Kansas State Prison Makes Money.</u>	15
<u>State Use in Ohio.</u>	16
<u>The Governors on Road Work by Prisoners.</u>	16
<u>Transportation Again?</u>	16
<u>Ohio Penitentiary Breaks Silence.</u>	17
<u>A Good Idea.</u>	17
<u>Prison Publicity.</u>	17
<u>State Use in New York.</u>	18
<u>Probable Abolition of Contract Labor at Chicago Bridewell.</u>	18
<u>Vermont’s State Prison Warden Resigns.</u>	19
<u>Prisoners’ Wages Reduced in Ohio.</u>	19
<u>Parole Law Recommended For Rhode Island.</u>	19
<u>Convicts Build Arizona Bridge.</u>	20
<u>In Iowa.</u>	20
<u>Auburn Inmates Celebrate Under Their Own Captains.</u>	20
<u>Tynan’s Way.</u>	20
<u>Tramps and the Railroads.</u>	21
<u>Changes in Military Prisons.</u>	21

<u>Frank Sanborn on the State Control of County Jails.</u>	22
<u>The Booher Bill Passes the House.</u>	23
<u>Gruesome!</u>	23
<u>National Agitation for State Use System.</u>	23
<u>Pardons.</u>	24
<u>Farming by Texas Prisoners.</u>	24

VOLUME IV, No. 3.

MARCH, 1914

THE DELINQUENT

(FORMERLY THE REVIEW)

**A MONTHLY PERIODICAL, PUBLISHED BY
THE**

NATIONAL PRISONERS' AID ASSOCIATION

AT 135 EAST 15th STREET, NEW YORK CITY.

THIS COPY TEN CENTS.

ONE DOLLAR A YEAR

T. F. Garver, President.

Wm. M. R. French, Vice-President.

O. F. Lewis, Secretary, Treasurer and Editor The Delinquent.

Edward Fielding, Chairman Ex. Committee.

F. Emory Lyon, Member Ex. Committee.

W. G. McLaren, Member Ex. Committee.

A. H. Votaw, Member Ex. Committee.

E. A. Fredenhagen, Member Ex. Committee.

Joseph P. Byers, Member Ex. Committee.

R. B. McCord, Member Ex. Committee.

Entered as second-class mail matter at New York.

THE “DOPE HABIT”

[We reprint Edward Marshall’s illuminating article from the New York Times of February 22nd on the most recent serious menace within our prisons, and outside of them. There has come throughout the country, apparently a relatively sudden realization of the fearful effects of the habit-forming drugs.]

Habit-forming drugs and their ravages, destructive of both the morals and the health of the community, seem at last to have aroused commensurate human indignation, at least in New York city.

Discussion is continual of this strangest and saddest of the problems of our modern civilization; city officials are definitely interested, studying and planning; a committee, including in its membership magistrates and others of sociological force, works on an impulse supplied by Mrs. Vanderbilt; and from a third source definite legislation emanates to be offered in the Legislatures of this and other States and in the National Congress.

Nothing more astonishing, nothing more appalling than the hold which habit-forming drugs have taken on the community at large can be found among the tragedies peculiar to modern civilization.

And all this has come suddenly. Not so many years ago the opium smoker was the only known victim, and he was a curiosity of Chinatown; the morphine taker was a rare, and troubled spirit, stalking solitary in its slavery and misery; the cocaine fiend remained unknown, and the heroin addict—latest in all this incomparably tragic company—was undreamed of.

Now opium smoking, though still the cause of an occasional police raid, has sunk into insignificance by comparison with morphine taking; cocaine habitues are not uncommon sights upon the streets to those with the depressing knowledge which identifies them; police slang has coined a

name for them—"snowbirds"; and we read in almost every issue of our daily newspapers of new developments of the "heroin habit."

Habit-forming drugs of one kind or another have gained so strong a hold upon the people of this country, more especially upon the people of American cities, that they have reached the dread proportions of a national curse.

They play their tragic part in uncounted domestic tragedies; an annual crop of business and professional failures numerically approaching the sad army of alcoholic wrecks is thrust into the various bins wherein we hide our human refuse; drugs send their yearly thousands of young men into the prisons, of young women to the streets.

A native Southerner, of national fame, high in the councils of his party, told me recently that habit-forming drugs, cocaine principally, have of late so complicated the negro problem of the South as to triple its difficulties and dangers.

These heroin and cocaine groups, lately so conspicuous, are insignificant in numbers and in tragedy when compared by those who know with the thousands to be found among our citizenship who, driven only into misery, not into viciousness or crime, by drug addictions, fall innocent victims to this most terrible of modern curses, sad sacrifices to illness and to pain, to ignorance and to cupidity.

The victims of drug habits who have been led into them through the mistaken methods of the doctor, who first administers the drug to ease acute physical suffering, and by the proprietary medicine or drug store preparation passed out as cure-alls with an indifference to or ignorance of consequences which must remain incredible to those who understand, is infinitely more numerous than the growing group of drug takers led into their addictions by the tendency towards dissipation.

Drugs are even taking hold upon our youth. Within the year many instances have been cited in the newspapers, which have uncovered peddlers of cocaine and heroin to school children. I listened recently to the appalling story of a seventeen-year-old Connecticut boy, brought by his father for

treatment in this city, who told how he had been the center of a group of not less than a hundred other boys in his own town who gained the drug through him and were completely at his mercy.

I was present recently when this father told the story, having brought the boy to the metropolis for treatment. It was practically the duplicate of many, and illustrates the real necessity of legislation, which will impose upon the druggist and the medical profession a general restriction.

“My boy,” this sorrow-racked and disappointed father said, “was employed by a physician living near us to care for his automobile. He paid him for his work by giving him prescriptions for heroin. My boy quickly became a victim of the habit, and soon formed the centre of a group of twenty or more other boy victims, who secured from him the prescriptions by means of which they brought the drug.

“Two large manufacturing establishments in our home town were thus infected, and at the present time not less than one hundred boys have become slaves to the habit. They buy the drug in quantities as large as they can pay for from the largest drug store in our city, and are never questioned.”

Their home city is Bridgeport, Conn. I have in my possession one of the prescriptions given to the boy by the physician, who thus paid him for his services in attending to his motor car.

In New York State and city the situation is not better. The police records have been full of “dope cases” for years. Morphine and heroin are doing serious work in the demoralization of the city, and the ravages of cocaine are as serious here as they can be among the negroes of the South.

Miss Katharine B. Davis, now in the full swing of her duties as Commissioner of Correction, tells me that she finds her problems complicated all along the line by drug addictions among inmates of the city’s prisons and jails, and the Mayor and other members of the city government are looking into the whole subject with deep interest.

In her efforts to discover how the city's prisoners get drugs, Miss Davis has uncovered strange, almost uncanny methods. A prisoner's wife or "girl" brings him clean handkerchiefs or shirts, stiffly starched. Left alone with them, he chews them eagerly, getting thus the morphine which impregnates the starch.

Another prisoner greedily sucks an orange which has been brought to him. Investigation shows that through a tiny puncture its juice has been withdrawn, to be replaced through a hypodermic syringe, after it has been transformed into a saturate solution of morphine.

Fountain-pens are now taboo among the prisoners. Their barrels may be filled with drug tablets.

In a letter now in my possession, written to Charles B. Towns, the drug expert, by Dr. Charles W. Farr, prison physician of Sing Sing, the doctor, after announcing the successful treatment of some drug addicts, continues:

"But the men seem to be able to get the various drugs as readily as ever. I suppose that the usual method is to have the guards bring it in for them. When questioned the prisoners always blame the traffic on the honest and unpopular guards who are not really concerned with it. I asked a convict to estimate the number of drug takers among the prisoners. He answered:

"'Counting the habitual users and the "joy riders," there are probably two hundred in this prison.'"

And while these demoralizing novelties are frequently discovered in the underworld, the hold which habit-forming drugs are getting elsewhere, with the worth while, is admittedly appalling. There are pharmacists in New York city whose important trade is drug traffic; there are physicians here, and not a few, who, while drug addicts themselves, find their practice also among drug addicts, furnishing prescriptions daily to habitues, collecting fees proportioned to their victims' purses.

As these things have become generally known, so has work begun to check the evils. Within a few days the most comprehensive legislative plan which

has so far been proposed for regulation of the traffic in all habit-forming drugs has been launched at Albany.

It will presently be launched in the New Jersey and all other State Legislatures. It is further planned to make this definitely comprehensive and effective by Federal legislation, already drafted and soon to be introduced at Washington.

Charles B. Towns, its author, also wrote the law, already on the statute books of New York and several other States, permitting the sale of the hypodermic syringe only upon prescription by a doctor; he presented last year at Albany a comprehensive bill which did not pass.

His measure of this year, known in the Senate as the Boylan bill, includes many features new to legislation of the sort, and has already won outspoken approval from many members of the medical profession, including Dr. Alexander Lambert of New York, and Dr. Richard C. Cabot of Boston. Commissioner Davis has gone over it with care, indorsing it.

“To wholly control the drug evil, which is so unfortunately affecting New York City and the State, by any legislation entirely local to the State,” said Mr. Towns, “is out of the question. But a beginning must be made at home.

“For various reasons habit-forming drugs have found a stronger foothold in this country than elsewhere in the world. Our annual opium consumption, per capita, is far greater than that of China, although we use it principally in the form of its derivatives, morphine, etc., and our consumption of cocaine has grown to a magnitude unprecedented anywhere.

“Most of the legislation drafted for the purpose of restricting the use of habit-forming drugs has been ineffective. It is ridiculously easy to-day to obtain morphine or any other of the inhibited substances in New York without violation of the law, although New York has laws which were designed to be of drastic force.

“The classification in my bill reads: ‘Opium, morphia, coca leaves, cocaine, alpha and beta cocaine, their salts, derivatives and preparations.’

“This classification includes automatically many substances which it does not specifically mention, but which have recently attracted much attention because of their common use among drug-habitues.

“Among these is heroin. But heroin is a derivative of morphine, which is the active principle of opium, and is three times as strong as the parent drug.

“It is not mentioned in the bill because the word ‘heroin’ is a mere trade name, and a law prohibiting its sale under that name would not prohibit the sale of the same substance under any one of the new trade names which manufacturers would have no difficulty in coining.

“I speak of this almost at once, because I have had several inquiries as to why this drug apparently is omitted from the list named in the bill.

“To intelligently discuss the reason for the prevalence of drug addictions in this country would necessitate an exhaustive study of national psychology.

“Patent medicines containing small quantities of habit-forming drugs have wrought great havoc with us, for any medicine, containing any quantity of any habit-forming drug, contains it in habit-forming quantity if the dosage is regular. It is not the quantity, but the regularity of dosage which produces drug habits.

“A lack of understanding of this fact upon the part of the medical profession and the public has been responsible for many drug addictions.

“The cocaine habit had its start in patent medicine, mostly so-called catarrh cures, and will find its end in a national degeneration if it is not checked by drastic legislation.

“Heroin was first advertised about fifteen years ago, and accepted by the medical world as a non-habit-forming substance, having all the useful qualities of the dangerous habit forming drugs.

“Having been thus started, and innocently promoted by physicians and druggists, the progress of the habit, which has become a sanitary, criminal, and social problem of real moment, can be halted only by the passage of some law including such provisions as those I have included in the bill now pending in Albany.

“My plan is not accidental. I went to the Orient in 1908-1909 and spent a year there, studying the opium curse as it has there developed. Returning to this country I have since been thrown into the closest contact with the various drug addictions, passing several hundred cases in minute review each year. Last Summer I toured Europe and found that drugs have gained comparatively slight foothold there, and that no European nation has produced restrictive legislation worthy of consideration.

“Our own internal revenue reports show us to be consuming as many of these drugs as all of Europe put together uses.

“Of course, the fact that the drug traffic has continually increased in this and every other State despite the presence on the statute books of laws thought to be stringent, can mean but one thing—that in these laws are loopholes.

“The same laws which require that these drugs must be dispensed only upon presentation to the druggist of a physician’s prescription fail to forbid a layman from posing as a physician in making out prescriptions; no obligation of investigation is imposed upon the druggist.

“The drug trade is practically without legal regulation, although across the drug store counter are dispensed substances at least as dangerous to individuals and public welfare as those which are dispensed across saloon bars—and saloons are regulated very rigidly.

“No registration of manufacturing, wholesale or retail druggists is required by law. The importation, manufacture and distribution of habit-forming drugs are now surrounded by fewer restrictions than are thrown about tobacco. The proposed law provides for records of each grain, from the time it leaves the manufacturer until it reaches the ultimate consumer.

“Any druggist, wholesale or retail, may manufacture and market any proprietary medicine he may desire, containing certain quantities of these drugs, and offer it openly for sale, without the formality of a physician’s prescription.

“The clause in the otherwise worthy and admirable National Pure Food and Drugs act requiring that any drug store composition containing any quantity whatsoever of any habit-forming drug must bear upon its label an announcement of this content, was well meant, but has worked havoc.

“Even as no physician who administers a habit-forming drug to ease his patient’s pain should acquaint that patient with the nature of the drug he gives, lest the patient turn again to it when pain recurs and fasten something worse than pain upon himself, despite the doctor’s wishes, so no medicine offered for general sale and bearing on its label the announcement of its content of a pain-killing, habit-forming drug should by the law be tolerated.

“Relieved by the medicine those who take it read its label carefully, learn what has afforded the relief—it always is a mere relief, it never is a cure—and, unacquainted with the dangers attending substances of the sort, regularly dose themselves, either with increased quantities of the medicine or more probably with the straight drug.

“A drug-tainted patent medicine is absolutely certain to establish a drug habit in any one who, for any length of time, takes it according to directions.

“The proposed law makes such patent medicines, containing any quantity whatever of the habit-forming drugs, illegal. Physicians rarely

if ever give prescriptions for them. The public will lose nothing and gain much through their abolishment.

“Now let us consider the physician.

“Physicians are at present permitted to prescribe and administer the habit-forming drugs as loosely and extravagantly as they please, either to themselves or others, without responsibility as to the outcome. Under the proposed law they are held responsible.

“There is real necessity for the provision which disbars from medical practice physicians who take drugs. The drug-taking doctor is more dangerous than the drug-taking druggist or drug clerk. All are liable to irresponsibility at a time when it may well mean death to others; and, furthermore, all are promoters of the drug habit. The proposed law guards against them.

“The drug taker invariably introduces others to his drug, sometimes openly, oftener secretly, through perverted sympathy for another’s suffering.

“And if the drug-taking doctor should be barred from practice, so, also, should the drug-taking nurse and the drug-taking veterinarian.

“Now how are these things to be accomplished? The State Commissioner of Health is to prepare and furnish to all local Health Boards or officers official prescription blanks, serially numbered and bearing the State seal, making their imitation forgery.

“These are to be furnished to physicians on demand, and no drugs of this class are to be dispensed, save on their presentation properly filled out and signed; no prescription shall be refilled; all filled prescriptions shall be filed and open to periodical health board inspection, bearing not only dates and names of the physicians, but the names of patients for whom the drug is ordered, and no such prescription shall be filled more than ten days after issuance.

“To the purchaser, for his protection, while he has the drug in his possession, druggists must issue a certificate, giving their names and addresses and those of the prescribing physician.

“These are the principal restrictions surrounding the prescription blank, though there are others. And violations of these regulations are to be regarded as misdemeanors.

“In this proposed law, also, is incorporated a provision similar to that of the existing law restricting the sale of hypodermic syringes to physicians’ prescriptions.

“This roughly indicates the proposed provisions covering the sale of habit-forming drugs. They are followed by one which may seem almost fantastic to the person unacquainted with the terrible psychology of drug addictions.

“I shall preface any explanation of it with the announcement that the drug habit is not a mental state, but a physical condition. My knowledge of it, gained from observation of many hundreds of its victims, will forever prevent me from proposing or pushing any further restrictions of the traffic, until some provision is made for the relief of those already enslaved.

“To deprive a drug addict of his drug without giving him definite medical help must inevitably subject him to such suffering, such incredible and indescribable torment, as cannot otherwise be brought upon mankind. It may mean death; it is very likely to mean insanity. The drug addict will steal to get his drug; indeed, he may do murder in order to obtain it.

“Therefore this bill provides for the treatment and relief of those who, rendered unable to procure their drug by the provisions of the legislation, might otherwise be made the victims of a social progression.

“Such a relief is possible and not too difficult. The treatment by means of which it may be accomplished bears my name, but is no monopoly.

I could gain no profit from its use by the authorities and others. It includes no medicaments not purchasable at any well-stocked pharmacy. I have freely published broadcast every formula connected with it, unrestricted, for the benefit of the medical profession. It is now in use by the authorities in Sing Sing Prison, at Bellevue Hospital, in the hospital on Blackwell's Island, and elsewhere. Plans are under way for its more extensive use by the authorities.

“Very briefly I have sketched the provisions of this proposed State legislation. It should be welcomed by the doctor, for it puts him absolutely in control of one of his most valuable assets, the pain-deadening drug, a control which he must share, as things at present stand, with every corner druggist and every manufacturer of patent medicines.

“Decent druggists will welcome the planned regulations. It will protect them against thefts of drugs by employees, and the drug-taking drug clerk is a dangerous and at present all too common handicap on the employing druggist.

“A certain reputable retail druggist of my acquaintance tells me that within a year he has discharged two clerks, one for taking morphine, one for using cocaine. They were a threat against his welfare. How much greater was their threat against the public welfare?

“Neither the drug-taking doctor nor the drug-taking drug clerk will be a possibility under the provisions of the proposed new legislation, which demands that every grain of any of these drugs dispensed by or in the possession of druggist or a doctor, shall be instantly accounted for upon demand of the Health Board.

“The present situation, so terrifying that it forms a problem of our modern civilization, has grown out of the fact that neither the physician nor the druggist have been held really responsible.

“The druggist has been permitted to import and manufacture as freely as he pleased, and to sell under restrictions which were insufficient to prevent promotion of drug habits; the physician has never been

required to make accounting for prescription of or the administration of these dangerous substances, and his medical training, both in college and in hospital, has left him in the dark concerning the danger point in their administration.

“This proposed New York State legislation has been drawn with careful eye to the establishment, here in the Empire State, of a model law for other States. General adoption of such legislation would make proper Federal laws effective and without a perfect understanding between the State and Federal Government as to where responsibility of each begins and ends, no really effective action will be possible to either.

“The first step for the Federal Government will be to require the registration of all importers and manufacturers of habit-forming drugs, all wholesale druggists and drug jobbers, and all retail druggists. A similar registration is now required of all those engaged in the tobacco trade.

“The regulation of interstate traffic in such drugs will be a simple matter. A system of uniform order blanks furnished to the buyer, and of uniform invoice blanks furnished to the seller on demand, by the Government, can be so arranged that every step of every interstate shipment can be closely followed.

“It will be necessary to require that habit-forming drugs shall be shipped in bond; that the importer shall account for all which he imports, the manufacturer for all which he manufactures.

“The passage of the law subjecting importations of opium prepared for smoking to a prohibitive tax lost us millions in annual revenue and increased the vice of smoking opium, for it forced the preparation of raw opium for smoking in this country—an art which theretofore had been in the exclusive possession of an ancient Chinese company. Under this law opium prepared for smoking is cheaper in this country than it was before its passage. Let us have no more abortive legislation on this vital subject.

“Ninety-five per cent. of the whole nation’s drug evil could surely be avoided by the general adoption in all the States of legislation such as this proposed in New York State, supplemented by such Federal legislation as I have outlined.”

A COURSE FOR PRUSSIAN PRISON OFFICIALS AND OTHERS

BY AUGUST PLASCHKE, MINISTRY OF JUSTICE, PRUSSIA

I am very glad to give to The Delinquent information regarding the course of instruction in penology which for the last ten years has been conducted by the Prussian Ministry of Justice. There are three kinds of prisons under the supervision of the Ministry of Justice:—

1. The local prisons, under the direction of the local magistrate.
2. The county prisons, under the direction of the ranking county district attorney.
3. The large, so-called “special prisons,” of which the “Director” is the executive officer.

We had the experience that the directors of those prisons I have named under 1. above did not always meet the demands that we believed the government had the right to require of them, because they did not possess the necessary means and knowledge. The training of the lower officials in these local institutions was also often faulty. To be sure, there prevailed in general a condition of cleanliness, order and honesty, but the treatment of the prisoner according to the crime and to the individuality of the inmate was often pretty poor.

On the other hand, we came to the conclusion that only those judges could properly and reasonably impose a just sentence who knew and had studied the effect of imprisonment and the administration of a prison sentence upon the prisoner. And so there developed from this idea the requirement that the judge should also be assigned to the office of prison warden. And so, with the introduction of the course on prison administration, we had two aims:—

1. The understanding of the judge should be strengthened as to the effect of imprisonment upon the prisoner, in order that proper sentences should be imposed, not only from the standpoint of the law, but from that of the individual to be imprisoned.

2. It was important to develop prison wardens who would understand the effects of imprisonment and who could therefore administer their office properly. This required a proper training in all the details of prison administration, and the rules and regulations. We were confident that when the warden became conversant with all these matters, if he then had the necessary knowledge and interest, he would also train up in his turn the lesser officials of the prison.

So much for the purposes of the course in prison administration. We carry on the course in the following manner. We issue, around January, not a special, but a general invitation to attend the course. The invitation goes to recently admitted members of the bar, judges, district attorneys, and also to clergymen, physicians and the higher prison officials, who have shown special interest in their work. The invitations are very numerous. But since we can receive at the most only from 24 to 27 persons, in order to do each person justice during the two weeks of the course, only about fifty per cent. of the requests for admission can be considered.

The course is divided into two parts, practical and a scientific. During the forenoon the men in the course work in the prisons, where they are instructed in all the details of the administration. In the afternoon, scientific lectures are held, with following discussion, lasting often four hours or longer. I regard this part of the course as of great value. After the close of the course, during which, by the way, there are inspections of a number of institutions, the participants in the course return to their occupations, with the admonition that they shall pass along the knowledge they have acquired, and especially to give to the lesser officials of the respective prisons from which they have come, the benefit of what they have acquired. In this manner we send out through the Kingdom of Prussia every year a corps of new teachers.

Moreover, we ascertain who among the men that have taken the course has shown special interest, and is inclined to become the warden of a prison,

and we send him for several months to one of our best conducted institutions, "in training." Here he takes up the ordinary duties of the minor officials, up to and including the duties of the director of the institution himself. And if he shows himself well qualified, he is assigned as soon as possible to the position of representative of the warden, or his associate in the case of especially difficult tasks, and in this manner comes to learn the duties of prison warden in a number of institutions. And from this group of men the directors of the prisons are chosen.

As to the subjects of the lectures of the course, I would say that I cannot be very specific, for they change from year to year. The lecturers are both executive and theoretical. Among the teachers I might mention Professors Kahl, von Hippel, and Moehli. Among the subjects are the following:

Prison System and Prison Architecture.

The Mentally Deficient: their responsibility and methods of treatment.

The Treatment of Juveniles.

Organization of the Prison Administration.

If you wish, I shall be very glad to send you the program of the last course.

I can say, with much satisfaction, that we have really succeeded with these courses, and that they have found very favorable mention both in the press and in Parliament. The participants in the course complain sometimes because they are driven so hard, and I confess that the mental strain is considerable. But they nevertheless show great zeal and industry.

IMPORTANCE OF AN UP-TO-DATE MEDICAL DEPARTMENT IN A PENAL INSTITUTION.

BY JOHN L. WHITMAN, SUPERINTENDENT CHICAGO HOUSE OF CORRECTION

[Read at the American Prison Association, October, 1913]

It would seem as though the management of penal institutions, and especially houses of correction, could do no greater service to society than to give to their inmates the medical treatment and training they so badly need, and send them back to society at least somewhat prepared to take their places among men with a more equal chance of success.

As a result of observation made at the Chicago House of Correction, along these lines, the medical department of this institution has been equipped and enlarged during the last five years, so as to carry on some of the kind of work indicated.

The demonstrations made are most encouraging, not only to continue, but to still further increase the capacity. At present, instead of having only one physician, as in former years, who was expected to look after the needs of the entire population in all the different branches of medical science, which is impossible for one man to do, no matter how efficient and interested he might be, we have in addition to Dr. Sceleth, the Medical Superintendent, whose entire time and attention is given to the department, four internes, who are physicians, and two professional and registered nurses, who also reside on the premises, and are instructors for the inmate nurses used in accordance with their capacity.

As a consulting staff, we have twelve physicians, surgeons and specialists, who are actively engaged in the work of the department, visiting the institution at least once a week, and oftener as required.

The entire staff consists of nineteen, who are experts in their profession, find an abundance of work that, in doing, is in most cases a direct benefit to the community, as well as to the individual treated, as the delinquency of many can be traced to their physical ailments.

As a typical case, I might relate the story of a man that had been a delinquent or criminal (so called) for several years, during which time he had been estranged from family and relatives, who did not want to be identified with one of his reputation. He had for a long time been suffering from a rupture, and used this fact as an excuse for not applying himself to ordinary labor, and claimed he could not earn a living otherwise, so had drifted into criminal ways. When committed to the House of Correction and opportunity given him to be treated for his trouble, he gladly accepted; an operation was successful, and while convalescing he realized an obligation for having received, while under the bane of the Law, that which he had for years so badly needed.

The return to normal physical condition brought to him a desire to discharge that obligation. Upon the advice of the General Superintendent, he communicated for the first time in years with his family, and satisfied them that he was determined to no longer disgrace them, whereupon, with their moral support, he did renounce his vicious way, and has been in no further trouble with the law.

In other ways the Medical Department is of great assistance to the management of the institution, especially in furnishing to it reports of findings in individual cases of limited mental or physical capacity, so that the facts contained in the report may be considered in making assignments to work. Everyone, especially prison wardens, can readily see the advantage of this.

Not long ago, one of the boys in the School Department was reported to the management for apparently making no effort, particularly in his physical training exercises, to develop with the class, and was indolent in other studies. He was sent to the doctors for examination, and they learned by applying the X-Ray that he was suffering from tuberculosis of the shoulder joint. It is needless to say that the boy did not merit punishment under the circumstances.

Out of the fourteen thousand commitments to the Chicago House of Correction last year, three thousand three hundred and seventy-two were treated in the hospital, besides those who were prescribed for in the cell house, whose ailments did not require hospital care. Two hundred and fifteen were major surgical operations.

The results obtained in this work have attracted the attention and commendation of all who have observed them, especially judges of the courts, and captains of the police department, who could see an opportunity for great good to come to many individuals, their own work facilitated and simplified, if treatment could be given and observation made before the cases were disposed of in court.

In order to do this and prevent legal technicalities from arising by receiving patients before commitment by the courts, the House of Correction Hospital was organized by the executive officers of the institution as individuals, and is operated under a license granted by the city, under the name of the Sceleth Hospital. In one section of it, regularly committed sick prisoners to the House of Correction are kept, and in another section those under arrest, and cases pending in the courts, are brought by the police, placed under treatment and observation, and when able are taken to court with a statement from the physicians as to mental and physical conditions, so that the court can more intelligently dispose of them. Some are returned for further treatment and confinement under fine or sentence; others may be held to await the action of the grand jury on more serious charges; while others who had been treated for alcoholism, and for the first time in years were free from the effects of liquor, physically able and willing to support their families as they should, would be allowed to go home, with no record of fine or imprisonment against them.

The courts, and especially the court of domestic relations, finds that the hospital is a great aid in solving some of the problems submitted to them by families whose breadwinners have become neglectful or abusive, as a result of excessive drinking. In such cases, a sentence may be imposed, which carries with it a recommendation for such treatment as the defendant may need. When he has responded to treatment, and the proper disposition is shown toward his family, the court is made aware of the fact, and he is

released. In a normal physical condition, he is very apt to realize his possibilities as the head of a family and avoid the courts in the future. I can best describe the different classes of cases brought to the Sceleth Hospital by using the words of the Medical Superintendent, in a report made to me by him, which is as follows:

“I wish to emphasize the importance of a higher medical and surgical standard for the treatment of prisoners in our penal institutions.

“The officials controlling the Medical Department in ninety-five per cent. of our prisons and workhouses do not provide a proper equipment or staff of trained surgical and medical specialists, and they fail to recognize the importance of the medical department in educational and reform work.

“The proper care of prisoners and the remedying of bodily defects through such treatment as modern surgery and medicine can give, will decrease the prison population. There is not a day that we do not receive unfortunates who are compelled to beg or steal, because of their inability to earn a living on account of some physical infirmity which is readily cured by proper surgical or medical treatment.

“The Chicago House of Correction to-day is looked upon by the police department, the judges, and part of the public, as a city emergency hospital and sanitarium for all the alcoholics, drug habitues, epileptics, chronic incurables, cripples, blind and helpless beggars, cranks, perverts, and general mental and moral defectives who require special medical and surgical attention. Fully twenty per cent. of the cases that we receive are sent here by the judges for medical and surgical care. During last September four hundred and thirty-six cases were treated in the male hospital alone, with eleven deaths. Almost one hundred of these were ‘no paper’ cases, admitted to the Sceleth Emergency Hospital for treatment and observation. Among the cases that have been sent to us as alcoholics, we have found unfortunates suffering from skull fractures, syphilis, softening of the brain, delirium of pneumonia, brain tumors, acute dementia and other forms of insanity.

“Cases of nervous disease, with symptoms which simulate the ‘drunk’ in walk, speech and dull intellect, cases of coma, due to kidney disease, to hemorrhage, or injury of the brain, to exposure, to cold, to apoplexy, to sunstroke, meningitis, narcotic poisoning, etc.

“Please understand this is not a criticism of our ambulance surgeons or our police department, ‘as they need more than a curbstone diagnosis’ but to give you an idea why you need an efficient medical department. A man may be sitting on a curb, or lying in the gutter in a collapsed condition, with cold clammy skin, unable to talk intelligently, with or without an alcoholic breath; he may be on the verge of delirium tremens, or his condition might also be due to heart disease, to arsenic or lead poisoning, to intestinal, kidney or liver colic, to intestinal obstructions, to sunstroke, to the rupture of an artery in his brain, to shock, to the onset of some acute disease, or to a plain fainting spell.

“He may have had a tremor that looks like chronic alcoholism, but it may be a disease of the spine or brain, paralysis agitans or general paralysis of the insane. There was a time not very long ago when these cases were taken to the police station, locked up as drunks and died in a cell, when proper medical or surgical assistance would often have saved a life. Over one-half of our ‘no paper’ cases are not able to give any history of themselves; we know absolutely nothing except that the police brought in an unconscious man to us. This makes a diagnosis almost an impossibility in many cases. A printed history sheet was given to the police department, a sample of which is enclosed, which has been of great assistance to us in making a diagnosis.

“A number of insane cases, which are not responsible to man or God, are sent here for violating some statute. Among them are violent cases who have tried to commit murder, or assault, and would be a danger to any city to have at large; these of course are sent to asylums.

“Another type are unfortunates who are charged with being shiftless, who will not work to support themselves or their families. These are often unrecognized cases of brain or spinal diseases which leave the victim absolutely helpless and unable to work. These are often treated

as worthless bums, when they need good medical care and kind treatment.”

Another point of view deserving of strong emphasis is one directly the opposite of that usually held. We know well that alcohol is responsible for many conditions which are daily called upon to treat, but we do not give due consideration to the fact that the alcohol or drug habit had its beginning in an effort to relieve pain due to sickness, or to obtain solace after unsuccessful attempts to obtain or keep a job, when handicapped by some disease, recognized or not. Disease, alcoholism and crime are very closely interwoven.

Especial efforts are made at our institution to detect pulmonary tuberculosis in its early stages. Whenever possible, such cases are transferred to institutions devoted to the care of such patients, the aid of the courts being invoked in many cases to overcome the legal obstacles. If it is necessary for us to retain the tuberculosis patients, we place them under the best possible hygienic conditions. We point with pride to our out-of-door cottage tents, where the three essentials for cure are at hand—fresh air, rest and good food.

The House of Correction has a well deserved reputation for its success in the management of drug and alcoholic cases. But no “cure” such as is employed in most institutions is made use of here. The treatment is essentially educational. The offending drug is withdrawn, and the patient convinced that he can get along without it. Then, upon his release, it is entirely “up to him,” so to speak, as to whether he returns to the habit or not.

This is in no sense intended to underestimate the psycho-therapeutic treatment where it is indicated. However, we do desire to point out the absurdity of psycho-therapeutic treatment in cases suffering with a definite physical ailment where a careful and complete physical examination by competent men is most essential.

We have each week the following clinics:

Three Surgical Clinics,
One Medical Clinic,
One Nervous and Mental Clinic,
Two Eye, Ear, Nose and Throat Clinics,
One Skin Genito Urinary Clinic,
One Gynecological Clinic,
Two Dental Clinics.

In addition to the above, the health of two thousand inmates and the sanitation and food are cared for.

A SCENE FROM “THE MAN INSIDE.”

[This scene gives in special detail Mr. Roland Molineaux’s attitude toward the present-day treatment of the delinquent. “The Man Inside,” written by Mr. Molineaux and presented by Mr. Belasco, had a successful run in New York early in the winter. The following scene was the original, which was somewhat altered because of the exigencies of the stage.]

Act II, Scene 16.

Object: Gordon pleads for a better system of justice.

Jim Poor (to Travesty): What shall I do now, sir?

Travesty (to Jim Poor): Gordon has asked me to postpone this case.

Jim Poor: Postpone it! What reason has he got?

Travesty: I’d like to know (holding up the evidence). Don’t you see, Gordon, that these men are a couple of habitual criminals? Why, they’ve been in prison time and time again! And even that didn’t do them any good!

Gordon: Of course, it didn’t! Do you suppose that to take these men and shut them away in prison—to make them walk in a degrading manner—to garb them in a humiliating fashion—to force them to the performance of tasks without compensation—or worse, to submit them to the horrors of enforced solitude and idleness of mind and body! Is there in such a system anything influencing them for *good*?—sending them out useful, honest and ambitious members of society?

Travesty: Why, Gordon, these men are shameless! Nothing will reform them—not even the severest measures. They go right back to crime at the

first opportunity.

Gordon: Because imprisonment as a means of reformation is known to be useless! No one will trust the released convict! What chance has Red Mike got? Who would give Big Frank employment? The State releases them and tells them to go their way and sin no more, after the State has made it impossible for them to do anything else but sin! They have no chance to rehabilitate themselves.

Travesty: They wouldn't take it if it were given them. You can't reform them. "Once a crook always a crook." They must be taught that if they break the law they shall suffer for it, swiftly and surely. Am I not right, your Honor?

Judge Dykeman: Certainly. Punishment is what they need.

Gordon: Oh, no your Honor. That was the old idea of vengeance. "An eye for an eye, and a tooth for a tooth, and life for life." Surely, we have outgrown that theory long ago! Punishment for the sake of punishment—suffering as a curative agent—has always failed.

Travesty: Who says so?

Gordon: History proves it. Torture—death itself did not stop the pursuit of science: (To Creedon): It could not exterminate the Christian faith! Punishment never halted virtue and it will never conquer vice!

(Father Creedon greatly interested.)

Judge Dykeman: What would you suggest in place of punishment?

Gordon (with enthusiasm): Reverse the principle of Punishment—make it Reward! (Astonishment of all.)

Father Creedon (puzzled and astonished): Reward for criminals!

Judge Dykeman: Ridiculous!

Gordon: Not if we approach the subject in a constructive manner, abandoning methods which are obsolete and failures and direct our energies, not to destroying but to building up! Reward! All training and labor and success is built upon it. Children are trained that way. In schools, prizes and promotions are Reward. Why does the scientist and inventor work and study and succeed! Is it because of Punishment? The explorer sails and suffers—dies! The patriots fought not through the force of fear, but for the Reward of Glory!

Father Creedon (softly; half aside): The martyr's crown!

Travesty: All whom you have mentioned were innocent and noble. Remember, we are discussing felons.

Gordon: Well, do you train an animal by locking it up and making it miserable? Will a snake dance for you if you hurt it?

Jim Poor (sinking into a chair with assumed weariness): Now, you've got him going!

Judge Dykeman: Ah, but punishment is an example to others! You cannot deny the deterrent principle.

Gordon: Does the procession of convicted men ever halt? Where there was one yesterday, there are two to-day and there will be three to-morrow.

Father Creedon (crossing himself): Do not say, Mr. Gordon, that you quarrel with the great principle of Example! Do not forget what one Man, divine, has given us!

Gordon: I remember that the Romans crucified that Man as an example. Did they accomplish what they thought to do? So we, instead of making the criminal an example to others, should make our treatment of him the example to the criminal himself. To-day we cannot claim example as our purpose when the life of the murderer is taken in the pale light of dawn, in a little room, and in the presence only of a few scientists. Surely, it is not these that need the warning! If punishment is intended as an example, let us

be consistent; let the executions take place in the public parks and let the State declare the occasions holidays.

Judge Dykeman: You have forgotten, Gordon, the most important doctrine of all—Protection.

Travesty: Yes! Society has the right of self-defense. We are justified in imprisoning such people; even if it does them no good, because it protects Society.

Jim Poor: That's right!

Gordon: Only while imprisonment lasts, and in almost every instance it releases them a more dangerous menace than before their incarceration. And all because we deal with crime by a system childishy futile! As well might we sentence the lunatic to three months in an asylum, or the victim of smallpox to thirty days in the hospital, at the end of these periods to turn them loose, whether mad or sane, cured or still diseased.

Jim Poor (with great dignity): Now listen to me! You're going to claim that criminals are mentally diseased. There's nothing in that idea of their being abnormal.

Gordon: They must be! No normal man chooses sickness rather than health, or selects poverty when he might be rich! No one seeks suffering when he could be happy! Why, then, does a man follow crime when it brings him only misery in the end?

Jim Poor (with great satisfaction): As some great man once said—I forget who it was—“Well, what are you going to do about it?”

Gordon: Apply this very theory of Protection which Judge Dykeman urges.

Judge Dykeman: Just so. Protect ourselves against them.

Gordon: No! The protection of society would be doubly sure if we applied the great principle rightly. Our criminal law aims to protect society—in this it fails; it should aim to benefit the criminal—in that it could succeed.

Father Creedon: You're right!

Gordon: Physicians do not give medicine to those who are well, but to the sick who need it. The criminal law should protect the criminal against himself and the influences which have overcome him. It should cure and armor him with self-respect and courage.

Judge Dykeman: That would be a delightful state of affairs.

Travesty: And now I suppose you are perfectly prepared to substitute some new method of procedure? An original system of jurisprudence? What better method than imprisonment have you to offer for bringing a man to his senses?

(Annie does not understand the following.)

Gordon: I do not know, as yet. Is it fair to expect that I have found that which has been a mystery through all the centuries? But don't you see that the present method is inadequate? We punish crime with fine, imprisonment, and death, but is the fine given to the one injured? Does imprisonment of the criminal compensate the victim? Does death restore the dead?

Travesty: It is the Law!

Gordon: Yes, but the Law is wrong!

Jim Poor: Listen to that!

Gordon: Has not the State, so clear in defining the duties of the individual to itself, failed in its duties to the individual after his conviction? Is it not absurd and unjust for the State to wreak vengeance on the criminal and then abandon him? There must be a better way! A scientific method which is not based on suffering and inhumanity! To find it is the duty of the State. The National Government should undertake it.

Jim Poor: It's not the National Government's business!

Gordon: Yes, it is.

Jim Poor: Where's your precedent? (to Judge Dykeman). That's right, Judge,—I beg your pardon, Your Honor,—got to have a precedent for it, hasn't he?

Judge Dykeman: Certainly, he should.

Father Creedon: Perhaps he has.

Jim Poor: Go ahead, let's hear it; but the United States has nothing to do with it.

Gordon: Why not? It studies questions less important. It maintains experimental stations in every State and Territory where scientists investigate preventive measures against the ravages of insects and fungus growths.

Travesty (interested): You mean the Department of Agriculture?

Gordon (taking book from case and turning the leaves): I do. Here is the annual report in your library. If you want to know anything about the eradication of ticks on sheep—hog cholera bacillus—the chestnut-bark disease—the control of pecan scab by spraying—worms in dried fruit, the gypsy and codling moth eradication—the Department of Agriculture has bulletins and rules and even laws to regulate these matters.

Travesty: What of it?

Gordon: This! To regulate these *blights* and *pests* it costs the Federal Government twenty million dollars a year.

Travesty: But what has this to do with crime?

Gordon: Nothing! That's the trouble! The cost of handling crime is over one billion dollars a year in the United States and there are one hundred and thirteen thousand men in prison there to-day.

Father Creedon: Incredible!

Gordon: And yet, our National Government spends twenty million dollars a year to study and exterminate the animal, insect, and vegetable pests, but not a dollar is appropriated nor an hour of attention given for the study of preventive measures against the *human* pest—the man gone wrong—the criminal! The greatest menace to humanity is not of such importance as the mould on apple trees; a weevil in the cotton plant, or even a potato bug! Why a poison squad of scores of men employed to determine the harmlessness of Benzoate of Soda in tomato catsup, when there are “procuresses” and “cadets” in every city?

Father Creedon: What a terrible contrast! (to Judge Dykeman). Can nothing be done to remedy such a condition?

Judge Dykeman: I think there should be; it has never been brought to my attention before. (to Gordon). Do you think there is a way?

Gordon: Of course there is! Efficiency demands it! Think how much is lost through the non-productiveness of criminals and of the energy wasted by reason of our great army of two hundred thousand tramps. And add to this what must be the amount of the depredation of all criminal classes. Save this—make this an asset, not a depreciation. Under the present system, what a waste—what a sin against efficiency! We should stop this just as we reclaim the worthless land by irrigation and plan the conservation of our forests.

Travesty: And how do you propose to accomplish it?

Gordon: By taking the treatment of criminals out of local politics.

Jim Poor: Can't do it.

Gordon: Yes, by enacting a Federal criminal code with a Federal police to enforce it, and no longer leaving the management of prisons to keepers and wardens appointed because they are good fellows who can get out the votes, but providing for their appointment from a Government school of criminology established for this branch of the service, similar to Annapolis and West Point. And above all, establishing a Federal bureau of criminal research and control, which will study preventive and constructive

measures and make crime almost impossible by doing away with poverty, drunkenness and the thousand and one causes of crime. Some day a President will come who will make it the Government's duty to do something progressive; then there will be less study regarding the accumulation of wealth and more research for ways to benefit humanity. That day will come! Oh, God! that this our Land might be the first to welcome it! The day when crime will be controlled!

Jim Poor (sarcastically): When do you think that time will come?

Gordon: When woman votes!

Travesty (interested in spite of himself): It's not a bad idea, "Federal control of crime." I may use it some day in my campaign. What do you think of it, Your Honor?

Judge Dykeman: I am impressed by the conclusions shown.

Father Creedon (to Gordon): How did you find this out?

Gordon: From getting at the point of view of criminals themselves.

Father Creedon: But how did you do that?

Gordon: For years I have associated with men of this kind for the purpose of trying to understand the criminal instinct.

Judge Dykeman: Keeping bad company, as it were.

Gordon: Exactly that! Just what I've been doing!

Father Creedon: The end justifies the means, *in this case*.

Travesty: Been slumming in the interest of justice, have you?

Gordon: I have been trying to get at the truth.

Travesty: Worked yourself up into a state of mind in which you are in sympathy with these felons?

Gordon: Yes, I do sympathize with them! I realize the hopelessness of their lives and that they must move in the line of the least resistance!

Travesty: Well, you've wasted your time.

Gordon (earnestly): No, Mr. Travesty; think of the tremendous importance of any explanation in that direction. Isn't it worth while to have gone into the underworld and to have talked with men who have been through criminal experiences? There lies the secret of it all—in their point of view.

Judge Dykeman: But what makes you think there is some secret cause of crime?

Gordon: There must be some universal law—some influence that sways—something that binds them all together!

Judge Dykeman: Father Creedon, you who are learned in the deep law of spiritual things, tell us your opinion—judge this matter for us.

Father Creedon (softly): I think in pictures. To me it is as if a mariner lost upon some unknown sea; I sailed my ship astray—bewildered—lost. A sail appears! Answers my signal of distress—heaves to—gives me my bearings and then passes on. Hail and Farewell! That's all—but what it means to me! (to Gordon): You've put me on my course! A new day comes. You were the light illuminating all the East before Dawn! I want to see the splendid noonday when your answer comes. "Interested?" I want to see these men—I want to hear the evidence and the defense—I want to know that they are fairly treated.

Judge Dykeman (going towards door): Reverse your decision; come and sit with me. I want your help.

Father Creedon (crossing himself): *I cannot give you help, but there is One who can.*

(The Judge and Father Creedon about to exit. Creedon stops and comes back.)

Father Creedon (to Gordon): My son I bless you ere I go. (as if blessing Gordon): Be strong: Let nothing hinder you. I know that He will send His kindly light amid the encircling gloom—to lead you on.

EVENTS IN BRIEF.

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

Legislation in Maryland.—Prison reform legislation, as a result of the year's investigation of Maryland State prison and the subsequent discussion of prison conditions in that State, eventuated through a report on February 19th by the Penal Commission to the Governor of Maryland. The report advocated a considerable amount of progressive penal legislation, mainly as follows: One bill provides for an unpaid advisory board of parole, in order that all the essential features of the indeterminate sentence principle may be worked out. Further bills provide for the suspension of sentences, for indeterminate sentences, and for the release of prisoners on parole. A state board of control is established for the management of the State Penitentiary and the Maryland House of Correction, and provision is made for the establishment of a State prison for women. The operation of a penal farm is recommended in connection with the State Penitentiary or the House of Correction. A hospital for tuberculosis prisoners is recommended.

The Lash in Delaware.—The “Umpire,” which is the prison paper of the Eastern Penitentiary of Pennsylvania, reprinted from the *Delinquent* the article by Governor Miller, of Delaware, defending the whipping post, and published the following editorial as a rejoinder:

“Governor Miller’s argument in defense of the whipping-post would be simply unanswerable if it were applied to any other state in the Union, but Delaware.

“Delaware is an agricultural state wholly, with only one city worthy of the name, and that, Wilmington, which by its close proximity to Philadelphia, is really a suburb of the latter. There are no large number of factories, business houses, or thickly settled residential sections of the wealthy classes offering temptation to the professional burglar of other cities. A few banks are there, but bank robbery has been classed among the lost arts for some years, and rarely attempted anywhere.

“Within the past six months, Wilmington has been termed by the daily press, as a “veritable hot-bed of crime.” Highway robberies, burglaries, and assaults have been so common that citizens formed patrols for mutual protection of themselves and property. The authorities were not only compelled to largely increase its police department, but to enlist the services of a former superintendent of the Philadelphia Police to reorganize it.

“If, as the Governor claims, professional thieves from other cities give his state a wide berth, the inference is that these recent crimes were committed by natives. This being so, why doesn’t fear of the lash act as a deterrent to those who are so fully acquainted with its frequent use?

“The probabilities are that the professional burglar from other cities does not know of the existence of such a penalty, and if he did, it would not enter into his calculations one iota. No man perpetrates a crime with a view to being caught, therefore he rarely weighs the consequences. The professional thief endeavors to provide against detection, not punishment.

“The Delaware whipping post is a relic of the first settlers of the state, and used at that time as a measure of economy instead of jails which were to come later with the increase of crime. The law has been on the statute books for so many years, it has become a matter of state pride to perpetuate it as something reverential, descending from their forefathers. It was not effective 250 years ago, else they would not have built jails. It is no more effective now.”

Why Prisoners' Families Aren't Supported by Prisoners' Earnings.—Editorially the Boston Herald says:

“When the new prison commissioner advocates the dedication of the earnings of the prisoner to the support of his family, or, if he has no family, that they should be held for his benefit when he is released, he is proposing to load upon the State a charge which it ought not to bear. The State is entitled to the proceeds of the labor of its prisoners. With the handicaps which have been imposed upon prison labor by legislation such labor is not and cannot be self-supporting. The goods that prisoners make are excluded from the general market. Power machines are forbidden, for the most part, except in wood workings. Take the State farm, where the conditions are such that, if anywhere, the institution could be made self-supporting. With all possible use made of prison labor the average cost for the care of inmates above the proceeds of this work is in the neighborhood of \$2.50 per week. Of course the able-bodied short-term men come nearer than that to self-support. But that is the average outlay for maintenance, allowing nothing for interest on the plant. The State has been put to the cost of ferreting out the criminal, arresting, trying, and convicting him. The State must provide for his safe-keeping, clothe him, feed him, shelter him with proper warmth. Under restrictions surrounding prison labor he will not nearly meet the expense to which he has subjected the State. If his family need support while he is imprisoned, let the municipality provide that. With all the work he can do, the criminal is a burden to the Commonwealth. The State is entitled to all he can do towards self-support.”

Parole In Kentucky.—According to the Louisville Herald, since the State Prison South was converted into a State reformatory sixteen years ago, 4,670 prisoners have been paroled, of whom 2,666 have received final discharges. During the parole period the sentences of 295 expired. Six hundred violated their paroles and were returned to the institution. Five hundred and eighty-nine are parole violators and are at large: 433 are still reporting, and seventy-eight have died while at large.

Out of each hundred paroled, twenty-six have violated their agreement; fifty-seven have received their final discharge; two died; the terms of six expired while on parole.

The paroled men have earned \$1,315,642.76, and it cost \$1,143,078.64 to maintain them, a difference in favor of the State of \$172,564.26.

The Kansas State Prison Makes Money.—According to the Leavenworth, Kansas, Post, the State prison at Lansing saved the State about one half million dollars during the fiscal year ending June 30, 1913. This, according to those who should know, is a very conservative estimate. It represents about one-half of the appropriation asked for by the warden to be used in constructing the new penitentiary. The twine and brick plants and the coal mine are the different departments where the most of the saving was made.

The twine plant supplied the farmers of Kansas with three million dollars worth of twine last year at nine and one-half cents a pound. This represents a net profit of \$32,000, which went into the State treasury. If the farmers had been forced to buy from outside dealers at eleven cents a pound it would have cost them \$45,000 more. This \$45,000 and the \$32,000 profit, represents a total of \$77,000 saved the citizens of Kansas in twine.

The prison burns its own brick and lime and supplies brick to the different institutions over the state. The prison brickyard manufactured, for the use of State institutions in 1912, 1,623,447 brick of different grades. The prison received credit on the brick account for \$12,098. This was an average of about \$2 a thousand less than the same quality of brick sold for on the market. If these different institutions had been forced to buy on the open market, the cost to the State would have been about \$15,344. This does not take into consideration the brick used in the construction of the new twine plant and other small buildings in the prison yard.

The coal mine is the big money maker for the State. Last year the different institutions received 31,000 tons of coal from the prison, for which the prison was credited with \$77,500—\$2.50 per ton. It is said if the State had been forced to buy this coal on the open market, together with the twenty

thousand tons it takes annually to run the prison, it would have cost the State at least \$155,000. Some estimates have placed the amount as high as one-quarter million dollars. If the prison had new quarters it is said that the annual maintenance appropriation could be safely cut from \$105,000 to \$50,000, as the saving in fuel alone would run into the thousands of dollars.

The construction of the new twine plant is another instance of economy where the Kansas citizens profited. With prison brick, lime and labor, this plant, consisting of two buildings, will have cost the State, when completed, \$60,000 less than a similar plant constructed by a sister State. The two plants are identical in size except the Kansas plant contains two more machines than its neighbor's.

State Use in Ohio.—Printing of all the blank forms used by the counties of Ohio is a venture upon which the State soon may embark as one of the features of the “state use” plan of employing the convicts in the Ohio Penitentiary. Under the law the State Board of Administration sells all products made in the institutions to counties and other political subdivisions who are compelled to make purchases from the State. The blank supply business has been a lucrative one for the dealers.

The Governors on Road Work by Prisoners.—Twenty-five governors have placed themselves on record as favoring the working of convicts in the construction and repair of highways, according to a compilation of the discussions of prison labor in their last messages to the legislature, recently issued by the national committee on prison labor.

Convict road work is advocated by the governors both because of the healthful nature of such work and owing to the fact that convicts who have been employed in this way can more readily find employment when released; while many of the governors also point out the benefit to the public from better roads secured at a minimum cost.

Governor Dunn, of Illinois states that humanitarian reasons underlie the employment in open air work or the sort wherein and whereby the convicts are restored to society with their manhood quickened instead of deadened or destroyed.

Governor Oddie, of Nevada, who was instrumental in securing the passage of the legislation which provides for convict road work in that State is enthusiastic as to the success of the plan.

“There is no question,” he maintains, “but that the passage of this law has had a wholesome effect on our prison system, and has been the means of giving a new start in life to a large proportion of the discharged and paroled men. About forty per cent. of the total number of our convicts have been performing good service under the honor system at the road camp.”

Governor Hanna, of North Dakota, Governor Cox, of Ohio, and Governor West, of Oregon, hold that out-door work should be a privilege to be earned by good conduct; Governor Mann, of Virginia, testifies to the efficiency of the convicts when employed on the roads and cites figures to prove the economy of such work, maintaining, however, that the present cost can be greatly reduced by placing the men on their honor and lessening the number of idle guards; while Governor McDonald, of New Mexico, and Governor Carey, of Wyoming, refer to the few attempts at escape that have been made by convicts practically unguarded.

Governor Hunt, of Arizona, is in favor of paying the convicts at least 25 cents a day for their services as the cost will be small compared to the actual benefit derived by the construction of splendid highways, while the benefit accruing to society will return the investment a thousand fold.

The consideration given to convict road work by the governors is an indication of the importance attached to the matter by the police throughout the country. The governors present many different view-points, but a careful study of their statements shows that road work when conducted on a basis fair to the convict and the State, will go far towards solving the convict labor problem and the problem of good roads.

Transportation Again?—The question of exiling habitual or professional criminals is being agitated in England. In a recent report of the British prison commissioners it is noted that the number of persons having previous convictions has in late years risen from 78 to 87 per cent., says The Buffalo Express. The latest available figures show that in England only 118 of the 916 sentenced to penal servitude had not been previously convicted and that the greater number of old offenders had from six to twenty convictions against them. It is estimated that at the present time there are in London alone 20,000 habitual criminals. “The only way of dealing with these habitual criminals,” says an English authority, “is to expel them from the community against which they wage incessant war. A third conviction should cause the prisoner to be deported to some island and reduced to a state of industrial serfdom, in which he could earn his living.”

To adopt this suggestion means a return to the old system of convict colonies. An obstacle to the segregation plan under present conditions is the scarcity of lands available for such purposes. Suitable island territory is at a premium. Continental land, except in isolated cases, is not desirable for the location of convict colonies because of the opportunities for escape. The alternative is the establishment of prison farms—a system experimented with more or less during recent years.

Ohio Penitentiary Breaks Silence.—One of the most sweeping changes made in prison rules by Warden Thomas since he was placed in charge of the penitentiary came on February 24, when he announced that convicts would be permitted to talk to each other while working.

Almost since the time the prison was first built it had been one of the stringent rules of the institution that prisoners could not talk with each other while at work. This rule always was adhered to strictly. The theory was that to let prisoners talk in the shops and factories was to invite attempted escapes and plots leading to infractions of prison discipline.

A Good Idea.—From the Elizabeth, New Jersey, News, comes this information: “What New Jersey Is Doing for the Young Man Who Breaks Its Laws,” is the title of an instructive address being delivered throughout the State by the Rev. Frank Moore, of this city, superintendent of the New Jersey Reformatory. In his address Mr. Moore plainly shows the efforts of the State at its institutions to uplift manhood and instill higher ideals of living.

Superintendent Moore selects the county courthouse as the place to deliver his lecture, and has already spoken at seven county seats, including Toms River, Ocean county; Woodbury, Gloucester county; Freehold, Monmouth county; Mount Holly, Burlington county; Belvidere, Warren county, and Newton, Sussex county. At the two latter places, the audiences were so great that there was not room enough in the courthouses to accommodate them. At Mount Holly the largest gathering in years was the result.

Usually the county judge presides, and the lecture is heard by prosecutors, officials, ministers, school teachers, etc., who are naturally interested in the work from their vocations. Excellent reports have been made concerning the value of the lecture.

Prison Publicity.—The Montreal Star says that the farther the inquiry into the Kingston Penitentiary goes, the more it is evident that what the discipline of any prison needs is the wholesome and curative application of publicity. Punishments ought not to be inflicted upon convicts without the fact being made public. Any mischiefs which may arise will be possible only because the authorities of a prison have the power to punish prisoners behind their grim walls in entire secrecy.

“It is not necessary to charge that the authorities or even the guards are worse than the ordinary run of mortals, to see how the human nature in them may be exasperated by the criminal classes under their charge into taking action which they would not take if the steadying eye of the whole community were on them. It must be remembered that prisons are not

young ladies' boarding schools. We do not send the brightest and best of our youth to them. In fact, the deliberate purpose of our system of justice is to send them our worst. Undoubtedly, at times, we do send there some of our best—men whom a chance step from the beaten path has tripped into disaster—but our whole machinery of justice is at fault if the rule is not to select our criminals for our prison population.

“This being so, the guards and the prison authorities generally have a difficult and trying task constantly before them. It would be little wonder if they grew pessimistic and cynical touching the motives and the prospects and even the possibilities of their ‘guests.’ They are constantly in contact with men who ought to be far below the average in all these things. It would be a miracle if they kept their faith in human nature, and their attitude toward the human derelicts who thwart and defy them, at even the average pitch. Under such conditions, with the prison shut in on itself, like a little world islanded from the rest of the country, what can we expect but that prison opinion will come to justify harsh measures and cruel punishments?

“What is clearly needed is to correct this drift toward cynicism and possibly brutality by keeping it always in touch with the sane and unruffled point of view of the general community. This can only be done by publicity. Nor would a demand for publicity be unfair to the prison authorities. Their prisoner is sentenced to a fixed punishment for a definite crime. If he commits another crime, he should be sentenced to another punishment for that; but he should have his second trial and sentence as fully safeguarded by public opinion as his first. Refusal to obey prison regulations would be such a second crime; and his public trial for it would not only make it certain that the evidence was convincing and the punishment humane, but would bring the regulations themselves under public review.

“The whole prison system is bad enough—necessary as it is because of the criminality of certain people—without keeping it in darkness.”

State Use in New York.—The Prison Commission of New York bewails the reluctance of municipalities to obey the law relative to the purchase of prison-made goods.

Seven municipalities have made no purchases of this sort since the enactment of the law in 1896. One city has bought nothing but a straight jacket in eighteen years. Towns and villages have been even worse offenders.

Rochester's last order for supplies came in May, 1911; the authorities there contended that the city charter nullified the provisions of the Prison law with regard to the obligatory purchase of supplies from the State. In August last the Commission appealed to the Attorney-General, who rendered an opinion that local statutes did not supersede the provisions of the Prison law. When the matter came up once before, with regard to the liability of officers making purchases elsewhere than from the State Commission of Prisons, the Attorney-General held:

It is the duty of officers of political divisions of the State to make requisition on the State Commission of Prisons for such articles used in the municipalities as are manufactured in the State prisons. If such articles are bought elsewhere, without the certificate of the State Commission of Prisons showing inability to furnish the goods required, the officers making such purchases or auditing claims therefore are criminally and civilly liable for their acts.

The Prison Commission has issued the following:

The Constitution makes it the duty of the Legislature to provide employment for the convicts, and declares that the products of prison labor shall be sold only to the State or its political divisions. To compete as little as possible with free labor the prison industries have been diversified under assignments by the State Commission of Prisons.

Probable Abolition of Contract Labor at Chicago Bridewell.—The practise of hiring to private companies at a wage of a few cents a day the prisoners in the Bridewell, the penal institution of Chicago and Cook county, will be abolished in May if the recommendations of Superintendent John Whitman

are acted upon favorably by the city council, says the Christian Science Monitor of Boston.

Instead of the present system of using the labor of the prisoners, a system is being worked out by which they will be put to work on public improvements, receive a fair remuneration for their labor, a portion to be applied to paying their fines and a cash return assured for the support of their families. By this method the prisoners will not be relieved from paying the penalty for the crimes for which they have been convicted in many instances of a minor character, but neither will their families be deprived of their supporting labor during their imprisonment.

The board of inspectors has voted to discontinue the contract system within three months. Mayor Harrison is in accord with the movement. Representatives of the Chicago Federation of Labor and various trade unions have been working for it for a long time.

A report of the efficiency division of the civil service shortly, will recommend that the city use the convict labor, and will criticise the present system as wasteful and disgraceful. It is expected that a recommendation will be made for the employment of an administrative officer to act as a business manager, in charge of the operating part of the house of correction.

Vermont's State Prison Warden Resigns.—Following closely on our recent account of Warden Lovell's "honor system" in the Vermont State Prison, comes the following from the Boston Post, under date of February 24th:

"The nine years of novel 'elastic' treatment of prisoners carried on by Wilson S. Lovell, superintendent of the State prison, came to an end to-day when Lovell resigned. It was believed the resignation was due to a fire of criticism from Governor Allen M. Fletcher and members of the penal board.

"Some of the administration have openly criticised the Lovell rule as "too soft," and declare that "a more impersonal and severe ruler of the prison is required."

“The Lovell system aroused nation-wide interest among humanitarians and social workers. One of its startling features, which is said to have shocked the more staid citizens of this State, was to let chosen prisoners go to work about the country without any restraint of any kind.

“Another was a plan for paying men for overtime work in the prison factories, so that convicts were often able to pick up a comfortable little sum for themselves.”

Prisoners' Wages Reduced in Ohio.—Owing to an overstock of labor in the Penitentiary and the Mansfield Reformatory, the State board of administration has been compelled to cut the wage scale two cents on the hour. Hereafter, prisoners in the two institutions will receive a maximum of three cents an hour instead of five cents. The minimum of one cent an hour remains unchanged, says the Columbus Journal.

Under a law passed by the legislature last spring, prisoners were compensated at the rate of from one to five cents an hour, according to their character and good behavior. From September 16, last, until February 15, this year, there was paid to Penitentiary prisoners on this scale, \$33,000. The amount paid to prisoners in the Mansfield Reformatory was \$24,000.

At this rate, the estimated annual cost of prisoners' compensation to the State would be about \$140,000. The general assembly last month appropriated only \$75,000 for this compensation; hence the revision of the scale downward. Where the maximum earning power of prisoners under the old scale was forty cents a day, or \$2.20 a week on a basis of five and one-half work days each week, the new maximum will be 21 cents a day or \$1.17 a week. No strike, however, is predicted because of the cut, but much complaining is looked for.

Prison officials have detected many schemes of prisoners to beat the State's philanthropy. The law requires that 90 per cent. of their earnings shall go to their dependents. The remaining 10 per cent. is held in a fund against the prisoner's release to tide him over the period he is looking for work until settled. A scheme of the older prisoners to obtain all their money was to

represent that some relative in the country was in urgent need of support. The money would be sent to the “friend,” but soon returned to the prisoner.

Parole Law Recommended For Rhode Island.—The Board of Control and Supply of Rhode Island, which has charge of the State penal institutions, recommended in its annual report to the Legislature that a parole law be put into effect in this State. Under the proposed plan, prisoners who have served a portion of their sentence may regain their freedom and retain it as long as they live up to the terms of their parole.

Convicts Build Arizona Bridge.—“Cross-continental automobile tourists who will take the southwestern route to the Panama-Pacific Exposition at San Francisco in 1915, will cross the Salt river in going from Phoenix to Tempe over a substantial concrete bridge 1,508 feet long instead of having to ford either a wide raging torrent or a deep long, sandy, dried-up riverbed, according to season of the year,” says Dr. Charles G. Percival, in his new book, “The Trail of the Bull Dog,” which deals with the writer’s two years’ automobile trip of 50,000 miles. “The interesting part of this bridge lies in the fact that it was built of concrete in twenty-seven months entirely by convicts’ labor. The bridge is eighteen feet wide between curbs and 240 tons of steel rod and wire are contained in its construction. The bridge is floored with reinforced concrete and a two-inch bitulithic dressing. Eleven piers, each 125 feet in length, support the bridge, which is excellently lighted by electricity at both approaches, and throughout its entire length from power generated at the Roosevelt dam seventy miles away.”

In Iowa.—Prisoners at the Fort Madison penitentiary get increased pay and shorter hours through an agreement made by the State board of control for the cancellation of one prison contract and the transference of the contract of the Fort Madison Chair company to the Fort Madison Tool company. This takes 175 men out of the contract labor system.

By the terms of the arrangement, the board may terminate the remaining contract on or after March 1, 1916, by giving ninety days' notice. The old contract could not be cancelled before October 15, 1917. The State gains more than a year by the new deal.

The State will receive 60 cents a day for each man employed by the tool company under the new agreement. In addition the company will pay each man 10 cents a day for himself. The working day will be cut from ten to nine hours.

Auburn Inmates Celebrate Under Their Own Captains.—Fourteen hundred convicts in Auburn prison, observing Lincoln's Birthday, marched from cells to chapel and mess hall solely in charge of convict captains elected by the inmates several weeks ago as their representatives in the Mutual Welfare League. The convict officers relieved the regular officers and maintained splendid discipline.

The holiday entertainment was furnished entirely by convict talent and included an address on Lincoln by an inmate. Addresses were also made by Thomas Mott Osborne, chairman, and Professor E. Stagg Whitin, of New York, and Professor Henry T. Mosher, of Rochester, members of the State Commission for Prison Reform.

Tynan's Way.—Writing to the New York Sun, Warden Tynan of the Colorado State Penitentiary says:

“The position of penitentiary warden is the last in the world for a policeman. The policeman's education is all wrong. He thinks only of hunting out the evil in his victim, of making a record in convictions. A policeman warden would keep the black hole full, he would wear out the cat-o'-nine tails, he would revive the iniquitous stool pigeon and spy system; he would produce the typical, modern penitentiary which sends out unbettered and unstrengthened man and which menaces the society which it is supposed to protect.

“By removing the continual threat of arms, by eliminating oppressions and brutalities, by establishing a system of graded rewards for cheerfulness and industry, the Colorado penitentiary has been given a wholesome, helpful atmosphere. The men have taken no unfair advantage of square dealings and fair intent. They have met every advance in honesty and enthusiasm.

“Half the men who come here are men who never had a chance—unfortunates grown to manhood without impulse or direction. Out of their very helplessness they cheated and stole, robbed and killed. Most manifestly, mere weekly religious services will not free society from the menace of these men. They must be taught something to do. A State farm protects the present and guarantees the future.

“The interests of justice and of society would have been better served had many a convict never known imprisonment. If he were paroled immediately upon conviction his dependents would not suffer, nor the taxpayers be forced to bear the burden of greater depravity that always and inevitably attends penal servitude.”

Tramps and the Railroads.—Crimes committed against railroads are increasing, according to the annual report of the police department of the Baltimore and Ohio system, which shows that 13,129 arrests were made during 1913, as compared with 10,417 arrests during 1912. There were 8,449 convictions in 1913, while in 1912 the number of convictions was 6,515. This increase in crime added materially to the expense of the railroad for doing business during the year.

The report of G. A. Oglie, superintendent of police, covers all classes of criminal offenses, from petty larceny and disorderly conduct to train wrecking, highway robbery and murder. The most frequent offenders were those who “violated railroad laws,” for which 8,303 arrests of tramps and others unlawfully using the railroad property were made. Arrests for intoxication and disorder numbered 2,526, with 1,567 arrests for larceny, 176 for burglary and 3 for murder. For receiving goods stolen from the railroad there were 67 arrests.

Commenting upon the large number of arrests of trespassers—tramps and other vagrants and loiterers about the railroad—Superintendent Ogline says: “It is evident that the number of persons unlawfully riding over the railroads and trespassing upon the property in other ways is on the increase, but the officials have been badly handicapped in coping with this evil on account of the lack of co-operation on the part of authorities. The courts will handle a few offenders, but it is continually impressed upon the railroads’ police department that the arrests to trespassers must be held to the minimum because the cities, towns and counties are unwilling to bear the expense of harboring this class of offenders in jails and other institutions of detention.”

The head of the police department further states that in numerous instances where reports were made of obstructions having been placed on rails, missiles thrown at trains, etc., it was found that “very small children were often guilty of these offenses,” and the railroad officers frequently brought the cases to the attention of parents in an effort to correct the trouble.

Convictions were secured under the Carlin Act, a federal law, for the robbery of cars on the Baltimore and Ohio lines and heavy penalties were imposed for such crimes.

Changes in Military Prisons.—Revision of the articles of war—the military law of the United States that has stood unchanged since 1906—is proposed in a bill passed without a dissenting vote by the Senate, in February, designed to make the soldier guilty of purely military offenses an object of reformatory discipline instead of a penitentiary convict with the criminal stamp upon him.

Fort Leavenworth, Kas., would cease to be a federal penitentiary under the terms of the bill, and hereafter would be known as the United States Military Detention Barracks. The prison would be modeled after the English army disciplinary institution at Aldershot, and no soldier or civilian convicted of an offense punishable by penal servitude might hereafter be confined there.

Military prisoners under suspended sentence quartered in the detention barracks would be organized into military commands, and their training kept up where prison conduct warrants in the opinion of the Secretary of War. Honorable restoration to the army, or permission to re-enlist without prejudice if the enlistment had expired, would follow good behavior.

This radical revision of the army's disciplinary methods is proposed in a recodification of the articles of war, dropping thirteen sections from the old code as obsolete and inserting provisions for a policy of suspended sentence and less drastic treatment of military offenders generally.

The bill makes no mention of the military prison on Alcatraz Island, San Francisco. In this connection the committee report says the Secretary of War is convinced that establishment of the detention barracks and necessary branches would make the maintenance of a military prison unnecessary. The elimination of Alcatraz Island from the bill would make possible the use of the islands as an immigration station, as desired by the immigration bureau.

The jurisdiction of courts-martial would be broadened considerably under the proposed new code, extending to capital offenses in time of peace which are beyond the reach of civil courts. The present code gives this provision only in time of war. On spies in time of war only would the death sentence be mandatory under the new code, and a two-thirds majority of the court-martial imposing such sentence would be required instead of a bare majority.

Frank Sanborn on the State Control of County Jails.—In a letter to the Boston Transcript, Mr. Sanborn writes as follows:

“The present agitation of the prison reform question in Massachusetts, and the number of those who support a better system of prison discipline, are interesting facts to me, who, as secretary of the first Board of State Charities, appointed fifty years ago last October, was the first permanent inspector of all our Massachusetts prisons that had ever filled that post. I devoted much time to it in the first years of my service of five years; and on

the 2nd of March, 1865, my friend, Gov. Andrew, sent in to the Senate my long special report on our prisons, with suggestions for their reformation, most of which were subsequently inserted as laws in our successive revisions of the statutes. But one suggestion, then first made, has not yet been adopted and is urgently needed for adoption by the present legislature—the control and classification of the prisons in our fourteen counties by the State government. It is not practicable, without a change in the State constitution, to make this control quite complete, for our county sheriffs are constitutional officers and have certain legal and customary rights over the arrests and custody of untried prisoners, witnesses, etc., which no statute can take away. But all convicts in the counties—that is, all sentenced persons—should be under a uniform discipline in their prisons, which the State alone can establish and enforce.

“Fifty years ago we had no separate prison for women, no State reformatory for young offenders, no State asylum for insane convicts, and persons untried because insane; and no State asylum for placing reformed young offenders in private families. The next year after my report, a first step was taken towards State control by the creation of a State Workhouse at Bridgewater. This, which is now called the State Farm, contains at present more than a third part as many convicts as were in all the county prisons in 1864-5—only 6,563 in all. Adding to the Bridgewater prisoners the 800 insane convicts held in custody there, the total to-day is more than half the number in all the county prisons in March, 1865. The Women’s Prison at Sherborn, with its hundreds, the Concord Reformatory and the Shirley branch, with their 1,000 inmates, and the reformed young offenders now living under State authority in families and other convicts under State authority elsewhere, would add for an aggregate more than the 6,563 who were in the county prisons fifty years ago. To that extent the State has exercised its right of eminent domain over prisoners.

“But there still remain in the county prisons and the few county reformatories about 4,000 permanent or average prisoners—most of them convicts—whose proper classification is impossible, even in the larger counties, and practically out of the question in the middle-sized and small counties. And this average population of some twenty-five establishments represents not less than 30,000 different persons during the year, whose

separation and proper care cannot be provided for in these twenty-five prisons, etc., some of which are always crowded, others usually empty or half filled, and all under a varying, partial, costly and practically useless prison discipline. State control would give all but a few hundred of the 30,000 comers and goers a safe, judicious and to a good extent reformatory discipline, now quite uncertain or impossible as things are.

“Our county systems, of which the outward and visible signs are the prisons and court houses, expend hundreds of thousands of dollars every year and are the natural nests and breeding places of county rings, which waste the taxpayers’ money, manipulate and corrupt our local politics, and make the administration of criminal law, in several of the counties sometimes a job, sometimes a farce, and by its delays and appeals a great revenue for lawyers and officials, pocketing fees and postponing or perverting justice, in a manner that every one familiar with county business, as I was while a State official knows, but to a degree that can only be revealed by investigation in each county, such as that undertaken in my own County of Middlesex, and threatened by the mayor and other official persons in Suffolk. Let these investigations go on; but, in the meantime, follow the recommendation of all well-informed persons, and give the State commission control of these nests of crime and vice, our ill-governed prisons.”

The Booher Bill Passes the House.—On March 4th, by a vote of 302 to 30, the House passed the Booher bill that virtually prohibits the shipping of convict made goods in interstate commerce. The measure adopts the principle of the Webb law which provides that liquor shipped into “dry” territory shall be subject to local and State laws prohibiting the traffic in alcoholic liquors.

The Booher bill provides that convict made goods “shall upon arrival and delivery in any State or Territory be subject to the operation and effect of the laws of such State or Territory.”

Another bill dealing with goods produced by convict labor will soon be considered in the House. It applies the same provisions to goods made by convict labor abroad. This measure has already been reported in the House.

Gruesome!—In Virginia, according to the Richmond Journal, the body of a convict dying in prison is forfeit to the State; no matter if he has friends or money to receive it and give it decent burial. When a man dies in prison, whether he was sent for one year or for thirty years, his body is sent to the medical colleges of the State for dissection purposes. If he commit some horrible crime, which demands a death penalty, this is not the case. His family may receive his body and bury it. But the life convict and the convict who dies in prison are not given this privilege under the present law.

A bill that has come before the committee seeks to remedy this defect in the present law. It amends the law now in force so that it requires only such bodies as are to be disposed of at the expense of the State to be sent to the colleges. No man who saves the little money which he may have earned within the prison shops and lays it aside for this purpose will any longer be refused the right of burial.

This matter has for a long time been a source of much agony of mind and bitterness among the convicts. A Confederate veteran at the State Farm fears the dissecting table. If the bill is passed it will bring happiness to a number of the poor men, who have no other peace to look forward to than that of a quiet grave.

National Agitation for State Use System.—Organized labor has called upon manufacturers and citizens generally throughout the country to support the National Committee on Prison Labor, in its endeavor to bring about in the different States a system whereby prisoners shall be employed directly under State control of roads, farms, or in manufacturing articles for use in the institutions and departments under the control of the State. For the past four years this committee and the labor unions, especially the United Garment Workers of America, have been fighting the leasing system, whereby the labor of the convict is sold to the highest bidder, the bid always being from 50 to 75 per cent. less than is paid to the workers in the same line of industry outside of our penal institutions.

The effect of this prison competition is illustrated by figures gathered by the Bureau of Labor Statistics of Missouri, which has just completed an exhaustive investigation into conditions at the Missouri State prison at Jefferson City.

The clothing factory at that prison reported an output for 1912 of overalls and other garments valued at over \$2,500,000. The convict working force consisted of 887 men and 44 women, a total of 931, while for their labor the State received \$200,629. The total amount paid out in wages and salaries for superintendents, etc., was \$371,385. From these figures it will be noted that the cost of labor was so small when compared to that at a similar factory outside the prison walls as to be startling.

Free manufacturers are asked to compare their own payroll with that of the contractors at this prison where for healthy male convicts, 75 cents per day was paid, while for a few cripples and the women the figure was only 50 cents per day.

The National Committee on Prison Labor and the unions see that this unfair competition can be overcome by the work for the State, whereby no prison goods reach the open market, but these two groups need the support of all interested either for business or humanitarian reasons to bring about results which shall be effective and lasting.

From a practical business standpoint organized labor has brought this matter before the people of the country and awaits their action.

Pardons.—Governor David I. Walsh, of Massachusetts, has said he intends to refer to the members of the Board of Pardon and Parole, all petitions for commutation of sentence as well as of pardon, together with the ordinary cases which, under the statute creating the board, the Governor may refer to it.

The Governor said he could see no reason why he should discriminate between the man who is sentenced to the House of Correction and the man sentenced to State Prison, simply because the latter sentence is for a felony.

He would reserve the right to veto their recommendations and findings, he said. All petitions will be referred, the Governor said, except those where a convict is thought to be in immediate danger of death and prompt action on the part of the Governor is imperative.

Farming by Texas Prisoners.—Texas is to try the honor system among convicts in one of its prisons, says the Little Rock, Ark., Gazette, and is even going a step further by providing a profit-sharing plan to encourage prisoners in thrift and industry. Fifty white men have been selected for the test, and if the new plan proves feasible, it means that the entire prison system of that State will be revolutionized in the near future.

The prisoners are to be assigned to road work in a county that is to pay \$15 per month for each man's services. Half of their earnings will go to the penitentiary fund and the other half to the prisoners. The county will maintain the men and, as no guards or overseers will be employed, it is expected that the living cost of each prisoner will be less than one dollar per day.

Governor Colquitt has announced that preparations are now being made for the selection of another crew of 40 prisoners, who will work under similar conditions at construction work on Texas railroads. All of the men selected are young and have short sentences to serve. They will be placed under paroles while away from prison, but the paroles are revocable for disobedience.

STATEMENT OF THE OWNERSHIP, MANAGEMENT, ETC. of THE DELINQUENT, Published monthly at New York, N. Y., required by the Act of August 24th, 1912.

NAME OF	POST OFFICE ADDRESS
Editor, O. F. Lewis,	135 East 15th St., New York City
Managing Editor, O. F. Lewis,	135 East 15th St., New York City

Business Manager, O. F. Lewis,	135 East 15th St., New York City
Publisher, The National Prisoners' Aid Association,	135 East 15th St., New York City
Owners, The National Prisoners' Aid Association,	135 East 15th St., New York City

There are no bondholders, mortgages, or other security holders.

O. F. LEWIS, Editor and Business Manager.

Sworn to and subscribed before me this 30th day of September, 1913.

H. L. McCORMICK, Notary Public No 6, Kings County.
My Commission expires March 31, 1914.

Transcriber's Note:

Table of Contents generated by transcriber.

Obvious printer errors corrected silently.

Inconsistent spelling and hyphenation are as in the original.

*** END OF THE PROJECT GUTENBERG EBOOK THE
DELINQUENT (VOL. IV, NO. 3, MARCH 1914) ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.